

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JASON HERMIDAS and SYLVIA CRUZ,

Plaintiff,

SUMMONS

-against-

Plaintiffs resides at:
691 E. 138th Street, Apt 211
Bronx, New York 10454

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN
AND JANE DOE(S) OF THE 40th PRECINCT,

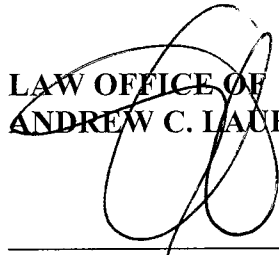
Defendants,

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
January 9, 2018


**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

ARRESTING OFFICERS JOHN AND JANE
DOE(S) OF THE 40th PRECINCT
257 Alexander Ave,
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JASON HERMIDAS and SYLVIA CRUZ,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN
AND JANE DOE(S) OF THE 40th PRECINCT,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, ARRESTING OFFICERS JOHN AND JANE DOE(S) OF THE 40th PRECINCT, were and still is employed with the NEW YORK CITY POLICE DEPARTMENT.
5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That a hearing was held on January 26, 2017 by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

7. That at all time herein mentioned, ARRESTING OFFICERS JOHN AND JANE DOE(S) OF THE 40th PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, ARRESTING OFFICERS JOHN AND JANE DOE(S) OF THE 40th PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about October 16, 2015, at approximately 7:30 p.m., Plaintiffs JASON HERMIDAS and SYLVIA CRUZ were lawfully at 691 East 138th Street, Apt 211, in the County of Bronx, State of New York.

11. The Defendants responded to a call at the building address.

12. Plaintiff Sylvia Cruz was assaulted by her neighbor Elizabeth Ortiz Delgado.

13. Upon taking statements from the parties, Defendants proceeded to arrest Ms. Cruz.

14. During the arrest process, Defendants struck and battered Ms. Cruz causing her tooth to fracture. Ms. Cruz was not resisting.

15. When the police told Ms. Cruz she was going to be arrested, Ms. Cruz requested that she contact her husband to watch her 3 year old daughter who otherwise would have been left

unattended at home. Defendants allowed her to contact her husband and Co-Plaintiff, Mr. Hermidas.

16. Upon arriving at the scene, Mr. Hermidas was violently taken into custody by the Defendants. Both Plaintiffs were taken to the 40th precinct.

17. Within the precinct, Mr. Hermidas was taken into the bathroom and viciously beaten again.

18. Thereafter, both Plaintiffs were placed in a holding cell.

19. At approximately 4:00 a.m. the following morning, Plaintiffs were taken to Central Booking.

20. Plaintiffs were presented before the Court at approximately 12:00 p.m. Bail was set at \$50 for Mr. Hermidas which he presented. Ms. Cruz was immediately released on her own recognizance. Plaintiffs were held for approximately 22 hours.

21. After their release, Mr. Hermidas immediately sought medical treatment at NYU Langone Medical Center. Ms. Cruz also sought medical treatment at Ida G. Israel Community Health Center.

22. After numerous Court appearances all charges were dismissed on December 12, 2016.

23. The individual Defendants, ARRESTING OFFICERS JOHN AND JANE DOE(S) OF THE 40th PRECINCT, under color of state law, subjected Plaintiffs to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiffs of their rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of their person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of

which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

24. Plaintiffs repeat and reallege each and every allegation contained above as though set forth at length herein.

25. That on or about October 16, 2015, at approximately 7:30 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to ARRESTING OFFICERS JOHN AND JANE DOE(S) OF THE 40th PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

26. That on or about October 16, 2015, at approximately 7:30 p.m., Defendant THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, jointly and severally in their capacity as police officers, wrongfully stopped, handcuffed, and seized the Plaintiffs about their person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiffs, nor did Plaintiffs consent to this illegal touching nor was or privileged by law.

27. That on or about October 16, 2015, Defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiffs, restrained them and their liberty and then took them into custody to the 40th Precinct.

28. Plaintiff was thereafter held at the 40th Precinct and elsewhere for several hours.

29. That the aforesaid arrest, detention and imprisonment continued at the 40th Precinct in Bronx, New York and elsewhere.

30. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officers, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

31. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiffs; that Plaintiffs were conscious of the confinement; that Plaintiffs did not consent to the confinement; and that the confinement was not otherwise privileged.

32. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiffs without probable cause, Defendants deprived Plaintiffs of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

33. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

34. As a result of the aforementioned actions, Defendants deprived Plaintiffs of their right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

35. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiffs' rights.

36. That by reason of the false arrest, imprisonment and detention of Plaintiffs, Plaintiffs were subjected to great indignities, humiliation and ridicule in being so detained, and were greatly injured in their credit and circumstances and were prevented and hindered from performing and

transacting their necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

37. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under the laws of New York State.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

38. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

39. Upon information and belief, on or about October 16, 2015 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants deliberately and maliciously prosecuted Plaintiffs, both innocent, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiffs of violations of the criminal laws of the State of New York.

40. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

41. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiffs without probable cause, Defendants deprived Plaintiffs of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

42. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

43. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

44. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

45. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiffs rights.

46. Plaintiffs have suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

47. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

48. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

49. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

50. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

51. Defendants arrested, incarcerated, prosecuted, and assaulted Plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiffs' liberty, well-being, safety and constitutional rights.

52. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

53. On or about October 16, 2015, Defendants did stop, seize, search, assault and commit a battery and grab the person of the Plaintiffs without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiffs during the arrest process in an unlawful and excessive manner.

54. The Plaintiff was falsely arrested, unlawfully imprisoned, beaten, and maliciously prosecuted without the Defendants' possessing probable cause to do so.

55. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to their person.
- b. Freedom from battery to their person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from malicious prosecution.
- f. Freedom from the use of excessive force during the arrest process.
- g. Freedom from unlawful imprisonment.

56. The Defendants subjected Plaintiffs to such deprivations, either in a malicious or reckless disregard of the Plaintiffs rights.

57. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has

not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

58. The direct and proximate results of the Defendants' acts are that Plaintiffs suffered severe and permanent injuries of a psychological nature. They were forced to endure pain and suffering to their detriment.

FOURTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE ASSAULT
AND BATTERY AND USE OF EXCESSIVE FORCE UPON PLAINTIFF

64. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

65. That on or about October 16, 2015, at approximately 7:30 p.m., Defendants, jointly and severally in his capacity as a police officer, wrongfully entered, stopped, handcuffed and seized the Plaintiffs about their person, causing them physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiffs, nor did Plaintiffs consent to this illegal touching nor was or privileged by law.

66. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right against being assaulted, battered, and to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

67. As a result of the aforementioned actions, Defendants deprived Plaintiffs of their right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

68. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiffs' rights.

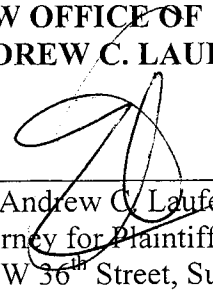
69. That by reason of the false arrest, imprisonment, detention, prosecution, and beating of Plaintiffs, Plaintiffs were subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in their credit and circumstances and was prevented and hindered from performing and transacting their necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

70. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

WHEREFORE, Plaintiffs demand judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiffs further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
January 9, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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JASON HERMIDAS and SYLVIA CRUZ,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN
AND JANE DOE(S) OF THE 40th PRECINCT,

Defendants,

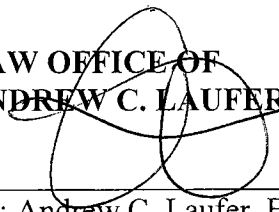
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the Plaintiffs in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the Plaintiffs is that the Plaintiffs do not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
January 9, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: 

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JASON HERMIDAS and SYLVIA CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN
AND JANE DOE(S) OF THE 40th PRECINCT

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer